constitution, in that the newly created courts were not subject to the same rules as the other courts in the nation's judicial system. This concerned such fundamental questions of due process as the tenure of judges and the rules of evidence. As a direct result of the ruling in *Mehram Ali v Federation of Pakistan*, the government issued the Anti-Terrorism (Amendment) Ordinance in October 1998, which disbanded the anti-terror appellate tribunals, with the effect that all appeals hereafter would be handled by the existing regular high courts.[6] This shows that as a matter of due process, Bhagat Singh was not given a fair trial, with the result that he was wrongly convicted. It was in violation of fair trial norms even back then and it was quite deliberate.

Back then the Raj governed, as Sherman has pointed out, through a 'coercive network of the colonial state' rather than the 'rule of law'.[7] The rule of law was deliberately suspended. In its place was what Anderson has described as the infamous 'Bloody Code', so that 'the scale of judicial reprisals seen in Empire . . . had no parallel in nineteenth-century Britain', and the death penalty was used to 'consolidate imperial rule and to eradicate resistance'.[8] In Bhagat Singh's case, these judicial reprisals went one step further. He was tried under a made-up law constructed on the hoof with no institutional backing. He was tried under what his Privy Council lawyer, D.N. Pritt, called a 'privilegium', namely, a law made for just one person. This was a concept of Roman law, from which English law was derived, whereby the Roman emperor bestowed on a single person either a right or a punishment which was anomalous and irregular. The Lahore conspirators were tried under a privilegium because they were subject to a single piece of the governor-general's legislation, namely, the Lahore Ordinance III of 1930, which named the twenty-four specific defendants to be tried, with no offences stipulated, before a specially constituted three-member tribunal, whose sole purpose was to only try these particular individuals, after which it would be functus officio. This was on evidence which was not known to any person beforehand and with no right of appeal thereafter to any court. His conviction was illegal and contrary to law. Should there, accordingly, be an apology from the British Government, as